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Case Number: 24STCV26217 Hearing Date: September 10, 2026 Dept: 515

NATURE OF PROCEEDINGS: Hearing on Motion to Tax Costs

The Motion to Tax Costs is denied.

BACKGROUND

Plaintiffs Fabian Ladera and Israel Torreblanca Benigno (Plaintiffs) filed this action against General Motors LLC (GM) and Felix Chevrolet (Dealer), alleging that they purchased a new 2021 Chevrolet 1500 that manifested defects GM failed to repair after a reasonable number of attempts.

The causes of action are: (1) Breach of Implied Warranty of Merchantability under the Song-Beverly Warranty Act; and (2) Breach of Express Warranty under the Song-Beverly Warranty Act.

GM filed a Motion to Strike or Tax Costs. Plaintiffs filed an Opposition.

The Court dismissed the action as to Dealer without prejudice on April 8, 2025. In October 2025, Plaintiffs accepted GM's offer to compromise under Code of Civil Procedure section 998, which left attorney fees, costs, and expenses to determination by noticed motion. On December 18, 2025, the Court dismissed the action without prejudice and retained jurisdiction to enforce the settlement under Code of Civil Procedure section 664.6. On June 16, 2026, Plaintiffs filed a Memorandum of Costs and a Motion for Attorney Fees, Costs and Expenses. On August 17, 2026, the Court denied that motion as untimely and denied its request for costs and expenses without prejudice to their determination on the instant Motion.

LEGAL STANDARD

“Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.” (Code Civ. Proc., § 1032, subd. (b).) That entitlement operates as a default. “Nothing in this section shall prohibit parties from stipulating to alternative procedures for awarding costs in the litigation pursuant to rules adopted under Section 1034.” (Id., subd. (c).)

A prevailing party claims costs by serving and filing a memorandum of costs. The memorandum “must be verified by a statement of the party, attorney, or agent that to the best of his or her knowledge the items of cost are correct and were necessarily incurred in the case.” (Cal. Rules of Court, rule 3.1700(a)(1).)

“If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. ‘On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.’ However, whether a cost item was reasonably necessary is still a question of fact to be decided by the trial court.” (Jones v. Dumrichob (1998) 63 Cal.App.4th 1258, 1266 (Jones), quoting Ladas v. California State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.) A party’s “‘mere statements in the points and authorities accompanying its notice of motion to strike cost bill and the declaration of its counsel are insufficient to rebut the prima facie showing [that the costs were necessarily incurred].’” (Jones, supra, 63 Cal.App.4th at p. 1266, quoting Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal.App.3d 256, 266 [alteration made by the Jones court].)

ANALYSIS

I. Timeliness

“A prevailing party who claims costs must serve and file a memorandum of costs within 15 days after the date of service of the notice of entry of judgment or dismissal by the clerk under Code of Civil Procedure section 664.5 or the date of service of written notice of entry of judgment or dismissal, or

within 180 days after entry of judgment, whichever is first.” (Cal. Rules of Court, rule 3.1700(a)(1).) “The time provisions relating to the filing of a memorandum of costs, ‘while not jurisdictional, are mandatory.’” (Hydratec, Inc. v. Sun Valley 260 Orchard & Vineyard Co. (1990) 223 Cal.App.3d 924, 929.) “All dismissals ordered by the court shall be in the form of a written order signed by the court and filed in the action and those orders when so filed shall constitute judgments and be effective for all purposes.” (Code Civ. Proc., § 581d.)

A. Trigger Date

GM contends that the Memorandum of Costs is untimely in its entirety because the 15-day period of rule 3.1700(a)(1) began to run when Plaintiffs accepted GM’s section 998 offer in October 2025. Plaintiffs argue that the memorandum was filed within 180 days of the December 18, 2025 dismissal.

The Court rejects GM’s contention. GM relies on *Madrigal v. Hyundai Motor America* (2025) 17 Cal.5th 592, 605, for the proposition that “[a]s between the parties thereto and for purposes of enforcement of settlement agreements, a compromise agreement contemplating payment by defendant and dismissal of the action by plaintiff is the legal equivalent of a judgment in plaintiff’s favor.” (Ibid., quoting *DeSaulles v. Community Hospital of Monterey Peninsula* (2016) 62 Cal.4th 1140, 1155.) That a settlement is the equivalent of a judgment for purposes of enforcing it does not make the acceptance of a section 998 offer the date on which judgment is entered. Here, judgment was entered when the Court dismissed the action under Code of Civil Procedure section 664.6 by written order filed December 18, 2025. (Code Civ. Proc., § 581d.) Timeliness is measured from that date.

B. Notice of Entry

GM replies that the Court’s August 17, 2026 ruling made findings that dispose of the Motion: the Court dismissed the action by written order signed and filed December 18, 2025, and the clerk electronically served a file-endorsed copy that day with the clerk’s certificate of service appended. GM adds that the same service was at least “written notice of entry of judgment or dismissal” under rule 3.1700(a)(1), that service satisfying rule 8.104’s stricter requirements cannot fail rule 3.1700’s, and that the 15-day period therefore ran from December 18, 2025 and expired in early January 2026.

GM’s argument reads the section 664.5 qualifier out of rule 3.1700(a)(1). The rule sets two 15-day triggers and one backstop. The first trigger is

service by the clerk, and not any service by the clerk: service “under Code of Civil Procedure section 664.5.” The second is service of written notice of entry, which Code of Civil Procedure section 664.5, subdivision (a), assigns to “the party submitting an order or judgment for entry” in a contested action where the prevailing party is represented. The backstop is 180 days after entry of judgment.

The fee deadline is written differently. A motion for attorney fees must be served and filed “within the time for filing a notice of appeal under rules 8.104 and 8.108.” (Cal. Rules of Court, rule 3.1702(b)(1).) Rule 8.104(a)(1)(A) runs 60 days from the date “the superior court clerk serves on the party filing the notice of appeal a document entitled ‘Notice of Entry’ of judgment or a filed-endorsed copy of the judgment, showing the date either was served.” The appeal rule asks only what document the clerk served and whether it shows the date it was served. That is the test the Supreme Court applied in *Alan v. American Honda Motor Co., Inc.* (2007) 40 Cal.4th 894 (*Alan*), which requires a single, self-sufficient document, holds that “the ‘file-stamped copy of the judgment’ ... must truly be file stamped” (*id.* at p. 903), and confirms that the clerk could satisfy the single-document requirement “by attaching a certificate of mailing to the file-stamped judgment or appealable order.” (*Id.* at p. 905.) Nothing in *Alan* conditions the appeal trigger on a court order directing the clerk to give notice.

The difference between the two rules is deliberate. In *Van Beurden Ins. Services, Inc. v. Customized Worldwide Weather Ins. Agency, Inc.* (1997) 15 Cal.4th 51 (*Van Beurden*), the Supreme Court construed the same “pursuant to Section 664.5” language in Code of Civil Procedure section 660. Before 1981, a clerk’s unrequired notice “was purely voluntary and ought to be given no more significance than if the same information had been conveyed by any disinterested person not a party to the action.” (*Id.* at p. 58.) The 1981 and 1982 amendments placed “the primary burden of providing formal ‘notice of entry’ of judgment on the party submitting the order or judgment for entry,” leaving the clerk to give notice in the situations the statute names or “[u]pon order of the court.” (*Id.* at pp. 59-60.) The new trial statutes and several rules of court, among them former rule 870(a) governing prejudgment costs, “continued to reference the date of mailing of notice by the clerk of the court ‘pursuant to Section 664.5,’” while the appeal rule alone had been revised to delete that reference. (*Id.* at p. 60 & fn. 3.) Former rule 870(a) is now rule 3.1700(a), and it still carries the reference.

As the Supreme Court explained, because a clerk who mails a file-stamped judgment “may be doing so either to fulfill his duty under California Rules of Court, rule 309 or because he was ordered to do so under Code of Civil Procedure section 664.5,” no presumption that the clerk acted under the statute is warranted. (Van Beurden, *supra*, 15 Cal.4th at p. 63.) Outside the situations in which section 664.5 makes clerk’s notice mandatory, “to qualify as a notice of entry of judgment under Code of Civil Procedure section 664.5, the clerk’s mailed notice must affirmatively state that it was given ‘upon order by the court’ or ‘under section 664.5,’ and a certificate of mailing the notice must be executed and placed in the file.” (Id. at p. 64.) Absent that statement, only the submitting party’s service and filing of notice of entry shortens the period. (Id. at p. 65.) Rule 3.1109, the successor to rule 309, states the same rule: the clerk’s notification of a ruling “constitutes service of notice only if the clerk is required to give notice under Code of Civil Procedure section 664.5.” (Cal. Rules of Court, rule 3.1109(a).)

Thus, a clerk’s service of a file-endorsed judgment can start the time to seek attorney fees while leaving the time to claim costs governed by the 180-day period or by a party’s notice of entry. The Judicial Council removed the section 664.5 qualifier from the appeal rule and left it in the costs rule (Van Beurden, *supra*, 15 Cal.4th at p. 60, fn. 3), and the Court applies each rule as written.

Here, the clerk’s December 18, 2025 service of the order of dismissal was not made under section 664.5. No party served notice of entry. Therefore, the applicable period is 180 days from entry of judgment. Plaintiffs filed and served the Memorandum of Costs on June 16, 2026, which GM itself counts as the 180th day. (Reply, at p. 3:19.) Therefore the Memorandum of Costs is timely.

II. Costs Claimed

GM objects to four items in the Memorandum of Costs. Its objections put the items in issue, and Plaintiffs responded with the One Legal invoices and court receipts. (Nita Decl., ¶ 3, Ex. A.) Each item is a cost the statute expressly allows, and the Court finds that each was reasonably necessary to the conduct of the litigation, reasonable in amount, and reasonably incurred in the commencement and prosecution of this action. (Code Civ. Proc., § 1033.5, subds. (a)(1), (a)(4), (a)(14), (c)(2), (c)(3); Civ. Code, § 1794, subd. (d).) Because each item falls within section 1033.5, subdivision (a), the Court need not

decide whether Civil Code section 1794, subdivision (d), reaches expenses outside that section. The Court has considered GM's itemized objections on reply to the components of the One Legal charges and finds that each component was incurred in prosecuting the action.

A. Filing Fee

GM contends that the \$60 filing fee for Plaintiffs' motion for attorney fees was optional, advanced nothing, and is overhead. Plaintiffs argue that the fee is recoverable. The fee was incurred and paid, and filing the motion was a step in prosecuting the action. (Nita Decl., Ex. A; Code Civ. Proc., § 1033.5, subd. (c)(1).) That the fee was paid the day after the Memorandum of Costs was served does not change that finding. The item is allowed.

B. Jury Fees

GM contends that the \$150 jury fee is recoverable only when a trial occurs. Plaintiffs argue that they paid the fee to preserve their right to a jury trial. The nonrefundable jury fee was a reasonably incurred cost of a case set for jury trial. (Nita Decl., Ex. A; Code Civ. Proc., § 631, subd. (b).) The Court allows the item.

C. Service of Process

GM contends that the \$113.58 charge for serving the summons on Dealer was unnecessary because the service did not contribute to the litigation and Dealer was later dismissed. Plaintiffs argue that Dealer, which sold and repaired the vehicle, was a proper defendant. Serving a named defendant with the summons is a necessary cost of commencing the action, and the charge is reasonable in amount. (Nita Decl., Ex. A; Complaint, ¶¶ 3, 7, 11.) The item is allowed.

D. Electronic Filing Fees

GM contends that the \$641.19 in electronic filing fees is unsupported. Plaintiffs argue that the fees were paid to One Legal to file and serve documents in this action and are documented by the invoices. Electronic filing is required in this Court, and the invoices document the charges for each filing in this action. (Nita Decl., ¶ 3, Ex. A; Code Civ. Proc., § 1033.5, subd. (a)(14).) The Court allows the item.

Accordingly, the Motion to Tax Costs is denied.

III. Attorney Fees

Plaintiffs request \$937 in attorney fees for 1.5 hours claimed for opposing this Motion, including 0.5 hours anticipated for the hearing, at \$625 per hour, as prevailing parties under Civil Code section 1794, subdivision (d), and argue that a party entitled to fees may recover fees for establishing the fee claim under *Serrano v. Unruh* (1982) 32 Cal.3d 621. (Nita Decl., ¶ 4.)

The request is denied. An Opposition is not an appropriate method of requesting attorney fees. (See Code Civ. Proc., § 1033.5 subd. (c)(5)(A) ["Attorney's fees allowable as costs ... may be fixed as follows: (i) upon a noticed motion, (ii) at the time a statement of decision is rendered, (iii) upon application supported by affidavit made concurrently with a claim for other costs, or (iv) upon entry of default judgment."].)

CONCLUSION

The Motion to Tax Costs is denied.